

trict Court,¹³ found that the board had made its decision to expel the girls on the basis of *no* evidence that the school regulation had been violated:

"To justify the suspension, it was necessary for the Board to establish that the students possessed or used an 'intoxicating' beverage at a school-sponsored activity. No evidence was presented at either meeting to establish the alcoholic content of the liquid brought to the campus. Moreover, the Board made no finding that the liquid was intoxicating. The only evidence as to the nature of the drink was that supplied by the girls, and it is clear that they did not know whether the beverage was intoxicating or not." 485 F. 2d, at 190.

Although it did not cite the case as authority, the Court of Appeals was apparently applying the due process rationale of *Thompson v. City of Louisville*, 362 U. S. 199, 206 (1960),¹⁴ to the public school disciplinary process. The applicability of *Thompson* in this setting, however, is an issue that need not be reached in this case.¹⁵ The record reveals that the decision of the Court of Appeals

¹³ At the time of the Court of Appeals decision, the testimony at the trial to the jury had not been transcribed because of counsel's concern with limiting litigation costs. Tr. of Oral Arg. 23. The transcript was filed in the District Court after certiorari was granted. App. 120 n. 2.

¹⁴ See also *Vachon v. New Hampshire*, 414 U. S. 478, 480 (1974); *Gregory v. Chicago*, 394 U. S. 111, 112 (1969); *Johnson v. Florida*, 391 U. S. 596, 598-599 (1968); *Shuttlesworth v. City of Birmingham*, 382 U. S. 87, 94-95 (1965); *Garner v. Louisiana*, 368 U. S. 157 (1961). Cf. *Boilermakers v. Hardeman*, 401 U. S. 233, 246 (1971).

¹⁵ That is not to say that the requirements of procedural due process do not attach to expulsions. Over the past 13 years the Courts of Appeals have without exception held that procedural due process requirements must be satisfied if a student is to be expelled. See *Goss v. Lopez*, 419 U. S. 565, 576-578, n. 8 (1975).